

M/S Radhey Ice Factory v. Dakshinanchal Vidhut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 23 February 2016 · WRIT - C No. 8164 of 2016 · WRIT - C No. 8164 of 2016 · **Writ dismissed; liberty to pursue clause 6.5 for disputed bills.**

HEADNOTE

Writ to quash a recovery citation and to have an electricity-bill claim decided in light of a Permanent Lok Adalat award dismissed. Applying *Anis Ahmad*, the Division Bench held that PLA proceedings on such disputes are without jurisdiction and that a consumer dissatisfied with bill correctness must proceed under clause 6.5 of the U.P. Electricity Supply Code, 2005. Interim order discharged. Review later withdrawn so the consumer could take the departmental statutory remedy.

FACTUAL SUMMARY

M/S Radhey Ice Factory, a consumer of Dakshinanchal Vidhut Vitran Nigam Ltd., sought quashing of a recovery citation dated 13 January 2016 issued by the Executive Engineer and a direction that its claim on the quantum of the electricity consumption bill be decided in light of an *Isthai Lok Adalat* order dated 13 March 2014 in P.L.A. Case No. 183 of 2013. A later review of the dismissal was withdrawn in 2017 so the petitioner could pursue the departmental statutory remedy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness-alternate-remedy

HOLDING

A consumer not satisfied with the correctness of electricity bills must seek remedy under clause 6.5 of the Electricity Supply Code, 2005; a writ to quash a recovery citation or to enforce a Permanent Lok Adalat award on bill quantum is not maintainable. Following *Anis Ahmad*, PLA proceedings in such matters are without jurisdiction. ¶ 2-4

FLAG Court referred to the 'Electricity Act, 2005'; the statute is the Electricity Act, 2003.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE CONSUMPTION BILLS AND VALIDITY OF THE RECOVERY CITATION DATED 13.01.2016

No merits finding; petitioner relegated to clause 6.5. ¶ 3-4

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>U.P. Power Corporation Ltd. v. Anis Ahmad</i> (2013) 8 SCC 491			2	Referred